Work Health and Safety (WHS) Policy

1. Purpose

TIIS commits to eliminating health and safety risks so far as reasonably practicable and, where elimination is not reasonably practicable, minimising them. This Policy establishes the governance, due-diligence, operational and assurance arrangements for physical and psychological safety of workers, students, contractors and visitors at TIIS activities and premises.

2. Scope

Applies to Directors, officers, employees, casual and sessional staff, contractors, consultants, volunteers, students and visitors; NSW and Victorian campuses; TIIS-controlled events, travel, off-campus activities, placements and approved remote work, to the extent TIIS has duties or control. Shared workplaces require consultation, cooperation and coordination with other duty holders.

3. Legislative and Regulatory Framework

- Work Health and Safety Act 2011 (NSW) and Work Health and Safety Regulation 2025 (NSW).
- Occupational Health and Safety Act 2004 (Vic), Occupational Health and Safety Regulations 2017 (Vic) and Occupational Health and Safety (Psychological Health) Regulations 2025 (Vic).
- Corporations Act 2001 (Cth), including directors' care and diligence obligations; Sex Discrimination Act 1984 (Cth), including applicable positive duty requirements.
- Higher Education Standards Framework (Threshold Standards) 2021, particularly Standards 2.3 and relevant Domain 6 governance requirements; ESOS Act 2000 and National Code 2018, particularly Standards 5 and 6 where applicable.
- National Higher Education Code to Prevent and Respond to Gender-based Violence: implement applicable obligations from its commencement on 1 January 2027, subject to current regulatory requirements.
- Applicable workers compensation, privacy, fire, building, anti-discrimination, child-safety and other laws, and relevant regulator codes and guidance.

Legislative titles and commencement status are to be checked by the Quality and Compliance Manager at each review. Mandatory law prevails over this Policy.

4. Policy Principles and Risk Appetite

- Prevention first: prefer elimination and higher-order controls over reliance on administrative measures or individual resilience.
- Duties are non-transferable: delegation of tasks does not transfer TIIS's or individual officers' statutory obligations.
- Physical and psychological health are equally material; staff and students must be able to report concerns without retaliation.
- Consultation and worker participation are essential to risk assessment, control selection and change management.

- The Board adopts zero tolerance for knowingly accepting uncontrolled risks of death or serious harm, and a low risk appetite for psychosocial harm, harassment and gender-based violence. Risk appetite never authorises breach of law.
- WHS and ESOS critical-incident processes operate concurrently where both apply.

5. Definitions

Term	Meaning
Officer	A person who is an officer under applicable legislation; in NSW, section 27 imposes a personal due-diligence duty. Victorian officer liability is addressed under section 144 of the OHS Act.
PCBU / employer	TIIS is a PCBU for NSW WHS purposes and an employer under the Victorian OHS framework, where applicable.
Worker / employee	Persons performing work for TIIS; statutory terminology and coverage differ by jurisdiction.
Hazard / psychosocial hazard	A source of potential physical or psychological harm, including work design, workload, relationships, aggression, sexual harassment and traumatic exposure.
Notifiable incident	An event requiring notification to SafeWork NSW or WorkSafe Victoria under applicable legislation.
EMT / ARC / HSR	Executive Management Team / Audit and Risk Committee / Health and Safety Representative.

6. Governance, Officer Due Diligence and Responsibilities

Role	Accountability
Board and individual Directors	Approve WHS Policy, strategy, annual plan, resourcing and risk appetite; receive and interrogate reporting; verify effective controls. Directors retain personal statutory duties.
Audit and Risk Committee	Review legal obligations register, audit findings, incident root causes, workers compensation trends and corrective-action closure; report assurance concerns to Board.
CEO	Executive accountability for implementation, resources, regulator notifications, escalations, corrective actions and quarterly Board reporting.
Campus Managers / EMT / Registrar	Implement campus controls, consult affected persons, maintain registers, conduct inspections, manage incidents and escalate material risks.
Quality and Compliance Manager	Second-line monitoring, legal obligation tracking, audit coordination and independent challenge; not a substitute for external assurance.
Workers / students / visitors	Take reasonable care, comply with lawful safety directions and promptly report hazards; protected rights remain unaffected.

6.1 Officer due-diligence program

- Knowledge: Director WHS briefing at induction and annually, covering both jurisdictions, psychosocial risk and gender-based violence.

- Understanding: Directors undertake or review documented campus visits at least annually and receive direct worker/HSR feedback.
- Resources: Board approves annual WHS plan and budget with specific psychosocial and prevention controls.
- Information: Board considers WHS at each ordinary meeting and receives a dashboard at least quarterly.
- Compliance: maintain a jurisdiction-specific legal obligations register and CEO compliance attestations.
- Verification: commission an independent WHS management-system audit within six months of initial adoption and thereafter on a Board-approved risk-based cycle; ARC tests action closure.

6.2 Board reporting

The CEO reports WHS incidents, notifiable events, psychosocial risks and corrective actions to the Board quarterly, and provides a WHS dashboard to each ordinary Board meeting. The report must cover leading indicators (risk control checks, inspections, training, consultation, drills and overdue actions), lagging indicators (injuries, near misses, claims, critical incidents and complaints), regulator contact, audit findings, trends and resourcing decisions. Serious matters are escalated immediately under section 12; quarterly reporting does not delay notification.

7. WHS Risk Management

Campus Managers identify hazards through inspections, incident trends, consultation, complaints and organisational changes; assess risks where necessary; eliminate hazards so far as reasonably practicable; otherwise apply legally required hierarchy/control principles; assign accountable owners and deadlines; verify effectiveness; and record material matters in the WHS and corporate Risk Registers. Critical controls are checked in practice, not merely certified as present.

8. Psychosocial Health and Safety

TIIS will maintain a documented psychosocial risk assessment for each campus, reviewed at least annually and whenever incidents, reported psychological injury, organisational changes, worker consultation or ineffective controls warrant review. NSW controls must follow the hierarchy required by the 2025 Regulation; Victorian identification, consultation, control and review obligations apply to Victorian operations. Work design, staffing, workload, role clarity, bullying, harassment, violence and gendered harm must be addressed with organisational controls. Counselling or resilience programs alone are not sufficient. Material findings are summarised to the Board.

9. Consultation, Communication and Training

Each campus must document appropriate worker consultation arrangements and consultation minutes. HSRs, designated work groups and committees must be supported and established within applicable statutory requirements where requested or required. Consult workers when identifying hazards, selecting controls, changing work systems and reviewing incidents. Invite student feedback on campus safety. Provide induction, emergency and evacuation information, role-specific training and refresher education; retain attendance evidence.

10. Student Safety, ESOS and Gender-based Violence

TIIS provides safe learning environments and overseas-student information about personal safety, emergencies, support services and critical incident reporting under National Code Standard 6 and HESF Standard 2.3. The Registrar coordinates critical incidents with ESOS reporting, welfare support and relevant academic arrangements. For students under 18, placements or provider-controlled/affiliated accommodation, TIIS must assess and implement additional applicable protections before the activity commences.

The Board must approve TIIS's whole-of-organisation gender-based violence prevention and response plan before applicable Code obligations commence; the CEO is accountable for implementation, prevention education, trauma-informed response and reporting. WHS incident, student welfare and GBV response pathways may operate in parallel, with privacy and procedural fairness safeguards.

11. Incident, Injury and Hazard Management

All hazards, near misses, injuries, illnesses and incidents must be reported promptly. Campus Managers arrange immediate care, secure the area, preserve sites where legally required, investigate proportionately and record corrective actions. The CEO is the authorised regulator notifier; where unreachable, the relevant Campus Manager must make an urgent mandatory notification without waiting for approval. Notification to SafeWork NSW or WorkSafe Victoria must occur immediately when required by law; additional written notification and recordkeeping requirements must be checked for the relevant jurisdiction. Serious investigations may be commissioned on legal advice where prosecution is possible; legal privilege is not assumed.

12. Emergency Response, Escalation and Regulatory Authorities

Each campus maintains coordinated emergency and evacuation plans, first aid resources, drills and landlord/building-manager liaison. Any manager may stop unsafe work immediately; workers retain statutory rights to cease unsafe work. The CEO may authorise operational closure, investigation, regulator response and high-risk contractor engagement within approved delegations; the Board reserves adoption/variation of policy, WHS strategy and risk appetite, appointment of independent auditor, and decisions concerning enforceable undertakings or prosecution settlements, subject to law and the Delegations of Authority Schedule.

Event	Escalation
Death or serious injury/illness	Notify CEO immediately; Chair within two hours; regulator immediately if legally notifiable.
Notifiable incident / dangerous incident	Notify CEO immediately; Chair within 24 hours; statutory regulator notice without delay.
Regulator inspection, notice or investigation	CEO immediately; Chair within 24 hours.
Serious sexual harm or harassment involving senior personnel	CEO or Chair if CEO implicated, within 24 hours; preserve confidential reporting routes.
Overseas-student critical incident	CEO and Chair within 24 hours, subject to immediate safety needs and concurrent ESOS obligations.
Psychological injury claim or repeated psychosocial complaints	CEO within 48 hours; report trend at next Board meeting.

Failed critical control / overdue high-risk action	CEO and ARC Chair within five business days; sooner if imminent danger.

13. Remote Work, Contractors and Shared Workplaces

Working-from-home approval requires a documented workstation, ergonomic, emergency and psychosocial self-assessment before commencement and annually thereafter. High-risk contractors must undergo prequalification, induction, insurance verification, supervision and entry in a contractor register. Campus Managers document coordination with landlords, building managers and other duty holders on fire, evacuation, access and maintenance controls. Digital work allocation, scheduling and performance systems must be assessed for emerging WHS risks and any commenced legal duties.

14. Workers Compensation and Return to Work

The CEO ensures current and adequate workers compensation arrangements for NSW and Victoria, accurate wage declarations, prompt claims handling, suitable injury management and return-to-work arrangements, and appointment of coordinators when required. Claims, lost-time injuries and psychological injury trends are reviewed by ARC. Settlement authority is subject to the Delegations of Authority Schedule and legal advice.

15. Monitoring, Assurance and Reporting

The Quality and Compliance Manager maintains a legal obligations register and coordinates inspections, internal reviews, critical control verification and an action tracker. ARC examines root-cause analyses, audit exceptions and closure evidence quarterly. Independent WHS audits are commissioned by the Board on a risk-based cycle. The CEO reports progress against the annual WHS plan and material exceptions to the Board; material WHS risks are recorded in the TIIS Risk Register.

16. Records and Confidentiality

Maintain WHS risk assessments, consultation minutes, training, inspections, incident reports, notifications, investigations, insurance evidence, claims and action-closure records in accordance with applicable minimum retention periods and any longer litigation, privacy or records obligations. Limit access to sensitive medical and complaint information to authorised persons with a legitimate need. Preserve evidence and legal holds when required.

17. Non-Compliance and Protected Reporting

Non-compliance may lead to corrective, disciplinary or contractual measures consistent with law and procedural fairness. No person may be penalised for reporting a hazard, seeking consultation, contacting a regulator or lawfully ceasing unsafe work. Immediate safety needs take priority over administrative approvals.

18. Related TIIS Documents

- TIIS Constitution, Governance Charter and Delegations of Authority Schedule.
- Risk Management Policy, Critical Incident Management Policy and Procedure, Safety and Security Policy, emergency and evacuation procedures.

- Student Support and Wellbeing, First Aid, Working from Home, Harassment/Bullying/Discrimination and Sexual Harm Prevention and Response policies, as approved and applicable.
- Gender-based violence whole-of-organisation plan (approval and implementation status to be verified).

19. Policy Approval, Review and Document History

This Policy is approved and varied by the Board of Directors. It is reviewed at least every two years and earlier following material legal, regulatory, incident, operational, campus or risk change. The Board minutes must expressly record that the review from Version 1.1 (2021) was overdue and the remediation steps adopted. The Quality and Compliance Manager maintains document control and ensures approval evidence is retained.

Document control	Details
Policy title	Work Health and Safety (WHS) Policy
Policy category	Corporate Governance / WHS / Wellbeing
Version	2.0 – revise
Policy owner	Chief Executive Officer (CEO)
Operational responsibility	Campus Managers and relevant managers
Compliance assurance	Quality and Compliance Manager; Audit and Risk Committee (ARC)
Approval authority	Board of Directors
Approval / effective date	25 October 2026
Next scheduled review	Within two years of Board approval; earlier on material change
Review history note	Version 1.1 (2021) to Version 2.0 (2026): review overdue against two-year cycle; record in Board minutes

20. Version History

Version	Status / approving authority	Details	Date
1.1 (2021)	Historical management approval	Previous operative version; two-year review cycle subsequently exceeded.	2021
2.0 (2026)	Approved	Comprehensive governance and legislative update in response to BOD & Deputy Chair review of 18 October 2026 and WH1–WH4;	22 October 2026